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CASE #	CASE NAME	HEARING NAME
CVRI2602223	PRICKETT vs PETERSON	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Before filing a motion to strike, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading, for the purpose of determining whether an agreement can be reached to resolve the objections. (CCP § 435.5(a).) Here, RBT's supporting declaration reflects only written correspondence—a June 4, 2026, letter raising the punitive damages demand (Knierim Decl. ¶ 3), a June 12, 2026, follow-up letter enclosing a proposed stipulation as to punitive damages (¶ 4), and a June 19, 2026, email attaching a draft motion and updated draft stipulation (¶ 5). There is no indication that the parties met and conferred in person, by telephone, or by videoconference as required by statute. Moreover, while this correspondence addressed punitive damages, there was no meet and confer effort of any kind directed to emotional distress damages. On this record, RBT did not satisfy its meet and confer requirement under section 435.5(a). Thus, the Court orders the hearing continued and order the parties to further meet and confer. The Court will meet and confer with the parties on August 26, 2026 to identify the next hearing date.